

SENATE No. 1925

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Barrett

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act imposing an in-state mileage-based road usage charge on the use of clean energy vehicles.

PETITION OF:

NAME:

Michael J. Barrett

DISTRICT/ADDRESS:

Third Middlesex

SENATE No. 1925

By Mr. Barrett, a petition (accompanied by bill, Senate, No. 1925) of Michael J. Barrett for legislation to impose an in-state mileage-based road usage charge on the use of clean energy vehicles. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act imposing an in-state mileage-based road usage charge on the use of clean energy vehicles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 64A of the General Laws is hereby amended by adding the following section:

2 Section 14. (a) For the purpose of this section, “electric vehicle” shall mean a battery
3 electric vehicle that is either a zero-emission vehicle or a plug-in hybrid electric vehicle equipped
4 with an on-board electrical energy storage device that can be recharged from an external source
5 of electricity and has the capability to run on another fuel; provided, however, that “electric
6 vehicle” shall not include a golf cart, electric bicycle or other micromobility device.

7 (b) Beginning January 1, 2027, in addition to all other fees and taxes levied, electric
8 vehicles and other vehicles that do not rely primarily on internal combustion engines shall be
9 subject to an in-state mileage-based road usage charge for the use by such vehicles of the
10 highways of the commonwealth. The Department of Transportation shall promulgate regulations
11 to establish the method of calculating the in-state mileage-based road usage charge.

12 (c) The in-state mileage-based road usage charge shall be paid each year following the
13 vehicle's most recent inspection. The number of miles traveled shall be calculated as the
14 difference between the vehicle's two most recent odometer readings, as noted on the vehicle's
15 certification of inspection pursuant to section 7A of chapter 90. The Department of
16 Transportation shall promulgate by regulation mechanisms for the collection of the road usage
17 charges imposed by subsection (b), including penalties and interest to be imposed on delinquent
18 road usage charges.

19 (d) Vehicles that qualify for any of the exemptions available pursuant to section 1 of
20 chapter 60A shall be exempt from charges imposed pursuant to this section.

21 (e) The Department of Transportation shall promulgate regulations to establish a method
22 by which an owner of an electric vehicle or other vehicle that does not rely primarily on an
23 internal combustion engine may present evidence of the number of miles such vehicle has been
24 driven outside the commonwealth. Unless an owner presents such evidence in a manner
25 approved by the department, the department shall assume that all reported miles were driven by
26 such vehicle on the highways of the commonwealth.

27 (f) All sums received from the in-state mileage-based road usage charge shall be credited
28 to the Commonwealth Transportation Fund.

29 (g) The Department of Transportation shall promulgate regulations for establishing,
30 imposing and administering in-state mileage-based road usage charges.